

OPUS GENETICS, INC. et al v. SANDOZ INC.

Plaintiff:	OPUS GENETICS, INC. and FAMYGEN LIFE SCIENCES, INC.
Defendant:	SANDOZ INC.
Case Number:	3:2026cv12469
Filed:	September 21, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Zahid N Quraishi
Referring Judge:	Rukhsanah L Singh
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
September 22, 2026	Filing 6 AO120 Patent Form filed. (jal,)
September 22, 2026	Filing 5 SUMMONS ISSUED as to SANDOZ INC. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (jal,)
September 22, 2026	Judge Zahid N. Quraishi and Magistrate Judge Rukhsanah L. Singh added. (jal,)
September 21, 2026	Filing 4 Corporate Disclosure Statement by FAMYGEN LIFE SCIENCES, INC. identifying Viartis Inc. as Corporate Parent.. (STEWART, SARAH)
September 21, 2026	Filing 3 Corporate Disclosure Statement by OPUS GENETICS, INC. identifying None as Corporate Parent.. (STEWART, SARAH)
September 21, 2026	Filing 2 Request for Summons to be Issued by FAMYGEN LIFE SCIENCES, INC., OPUS GENETICS, INC. as to SANDOZ INC.. (STEWART, SARAH)
September	Filing 1 COMPLAINT against SANDOZ INC. (Filing and Admin fee \$ 405

Date Filed	Document Text
21, 2026	receipt number ANJDC-17969894) , Related Case Selected, filed by FAMYGEN LIFE SCIENCES, INC., OPUS GENETICS, INC.. (Attachments: #1 Exhibit A - 810 Patent, #2 Exhibit B - 126 Patent, #3 Civil Cover Sheet)(STEWART, SARAH)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Opus Genetics, Inc. (Delaware) and FamyGen Life Sciences, Inc. (Nevada)
Defendant:	Sandoz Inc. (Delaware)
Plaintiff's Counsel:	Duane Morris LLP
Case Identification:	3:26-cv-12469 , D.N.J., 09/21/2026
Venue Allegations:	Venue is based on Defendant Sandoz Inc.'s regular and established place of business in Princeton, New Jersey, where acts of infringement, including the submission of the Abbreviated New Drug Application (ANDA), are alleged to have occurred. Plaintiffs also note that Sandoz has previously consented to personal jurisdiction and venue in the district in prior related litigation.
Core Dispute:	Plaintiffs allege that Defendant's submission of an ANDA seeking FDA approval to market a generic version of Plaintiffs' RYZUMVI® ophthalmic solution constitutes an act of patent infringement under the Hatch-Waxman Act.
Technical Context:	The technology relates to pharmaceutical formulations of aqueous ophthalmic solutions containing phentolamine, which are used for medical purposes such as reversing pharmacologically-induced pupil dilation (mydriasis).
Key Procedural History:	The complaint states this is the third lawsuit filed by Plaintiffs against Sandoz concerning the same ANDA (No. 219888). Two prior suits, filed in March 2025 and April 2026, asserted different patents against the same proposed generic product. This action follows the issuance of the two patents-in-suit in September 2026.

Case Timeline

Date	Event
2013-02-01	Earliest Priority Date for '810 and '126 Patents
2023-09-25	FDA Approval of RYZUMVI® New Drug Application
2025-01-31	Sandoz's First Notice Letter sent to Plaintiffs
2025-02-27	Sandoz's Second Notice Letter sent to Plaintiffs
2025-03-14	First related lawsuit filed (No. 3:25-cv-1895)
2026-04-29	Second related lawsuit filed (No. 3:26-cv-04811)

Date	Event
2026-09-01	U.S. Patent No. 12,721,810 Issued
2026-09-15	U.S. Patent No. 12,734,126 Issued
2026-09-21	Complaint Filed in Present Action

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,721,810 - Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof

Patent Identification: U.S. Patent No. [12,721,810](#), "Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof," issued September 1, 2026 **Compl. ¶21**

The Invention Explained

Problem Addressed: The patent's background section describes the difficulty in creating stable, aqueous formulations of phentolamine salts for ophthalmic use without employing a chelating agent, such as EDTA, which was believed to be necessary to maintain stability **'810 Patent, col. 1:55-62**

The Patented Solution: The invention provides stable, aqueous ophthalmic solutions of phentolamine that are explicitly "free of a chelating agent" **'810 Patent, col. 2:1-2** Stability is achieved through a specific combination of phentolamine (or its salt), at least one polyol compound (e.g., mannitol), a buffer, and water, all maintained within a particular pH range **'810 Patent, abstract** **'810 Patent, col. 2:29-38** This formulation is designed to be well-suited for administration as an eye drop and to minimize the stinging sensation associated with some prior art solutions **'810 Patent, col. 2:23-28**

Technical Importance: The invention provided a path to a stable and comfortable ophthalmic phentolamine formulation that avoids chelating agents, which were previously considered essential for the stability of such solutions **'810 Patent, col. 1:55-62** **'810 Patent, col. 2:1-9**

Key Claims at a Glance

The complaint alleges infringement of "at least one claim" without specifying which claims are asserted **Compl. ¶35** Independent claim 1 is a representative method-of-making claim.

Independent Claim 1: A method of making an aqueous ophthalmic solution, the essential steps of which are:

- combining:
 - phentolamine or a pharmaceutically acceptable salt thereof at a concentration of about 0.1% to 4% (w/v);
 - at least one polyol compound selected from a specific group (e.g., mannitol, glycerol);
 - at least one buffer at a concentration of about 0.1 mM to 10 mM; and
 - water;
 - wherein the resulting solution does not contain an additional ingredient that is a chelating agent; and

□wherein the resulting solution does not contain an additional ingredient that is a stabilizer '810 Patent, col. 42:1-20

U.S. Patent No. 12,734,126 - Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof

□**Patent Identification:** U.S. Patent No. [12,734,126](#), "Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof," issued September 15, 2026 Compl. ¶24

The Invention Explained

□**Problem Addressed:** As with the '810 Patent, the background identifies the need for stable ophthalmic phentolamine formulations that do not require a chelating agent '126 Patent, col. 1:55-62

□**The Patented Solution:** This patent claims a [method of using](#) the chelator-free phentolamine formulation to achieve a therapeutic effect. Specifically, it claims a method of pupil reduction that involves storing the specific formulation at a controlled temperature and then administering it to a patient's eye '126 Patent, abstract '126 Patent, col. 43:4-31

□**Technical Importance:** The invention secures patent protection for the specific therapeutic application of the stable, chelator-free phentolamine formulation, a key element for protecting a branded drug's market exclusivity '126 Patent, col. 2:38-46

Key Claims at a Glance

The complaint alleges infringement of "at least one claim" without further specification Compl. ¶53
Independent claim 1 is a representative method-of-use claim.

□**Independent Claim 1:** A method of pupil reduction, the essential steps of which are:

- storing an aqueous ophthalmic solution at a temperature in the range of 2-8° C.;
- administering that solution to the eye of a patient;
- wherein the solution comprises phentolamine, a polyol, a buffer, and water, within specified concentrations;
- wherein the solution does not contain an additional ingredient that is a chelating agent;
- wherein the solution does not contain an additional ingredient that is a stabilizer; and
- wherein the solution has a pH of about 4.0 to 7.5 '126 Patent, col. 43:4-31

III. The Accused Instrumentality

Product Identification

□The accused instrumentality is "Sandoz's ANDA Product," identified as a proposed generic version of RYZUMVI® (phentolamine ophthalmic solution, 0.75%) for which Sandoz filed ANDA No. 219888 Compl. ¶1

Functionality and Market Context

□The complaint alleges that Sandoz's ANDA Product is intended to be a generic version of RYZUMVI® and is represented to the FDA as "pharmaceutically and therapeutically

equivalent" **Compl. ¶33** **Compl. ¶51** RYZUMVI® is a sterile ophthalmic solution indicated for the treatment of pharmacologically-induced mydriasis **Compl. ¶¶18-19** Plaintiffs allege that Sandoz's product has a label and indications that are "the same, or substantially the same, as RYZUMVI®" **Compl. ¶29** This equivalence forms the basis for the infringement allegations, as the proposed generic product is expected to possess the same formulation characteristics and be used in the same manner as the branded drug.

IV. Analysis of Infringement Allegations

The complaint provides a high-level notice of infringement without detailed factual allegations mapping specific features of the accused product to the claim elements. This is characteristic of initial complaints in ANDA litigation filed before the plaintiff has received the confidential ANDA materials through discovery. No probative visual evidence provided in complaint.

U.S. Patent No. 12,721,810 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of making an aqueous ophthalmic solution, the method comprising combining: a. phentolamine or a pharmaceutically acceptable salt thereof... b. at least one polyol compound... c. at least one buffer... d. water;	The complaint does not provide sufficient detail for analysis. It alleges infringement based on Sandoz's submission of its ANDA, which seeks approval to manufacture and sell a generic version of RYZUMVI® (the "ANDA Product").	¶35; ¶46	col. 42:1-12
provided the aqueous ophthalmic solution does not contain any additional ingredient that is a chelating agent, and wherein the aqueous ophthalmic solution does not contain any additional ingredient that is a stabilizer.	The complaint does not provide sufficient detail for analysis of the specific excipients in Sandoz's ANDA Product. The infringement theory relies on the product being a generic equivalent of the patented formulation.	¶29; ¶33	col. 42:13-20

U.S. Patent No. 12,734,126 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of pupil reduction comprising administering to a subject	The complaint does not provide sufficient detail for analysis. The	¶29; ¶55;	col. 43:4-

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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an effective amount of an aqueous ophthalmic solution, wherein said method comprises: (a) storing said aqueous ophthalmic solution at temperature in the range of 2-8° C.; and (b) administering said aqueous ophthalmic solution to the eye of a patient...	infringement allegation is based on the assertion that Sandoz's ANDA Product will have a label that instructs users to perform the patented method, as its label and indications will be the same or substantially the same as RYZUMVI®.	¶64	13
wherein said aqueous ophthalmic solution comprises: a. about 0.1% (w/v) to about 4% (w/v) of phentolamine...b. at least one polyol compound... c. about 0.1 mM to about 10 mM of at least one buffer...d. water; ... and wherein said aqueous ophthalmic solution has a pH of about 4.0 to 7.5.	The complaint does not provide sufficient detail for analysis of the specific formulation in Sandoz's ANDA. It alleges the ANDA Product is "pharmaceutically and therapeutically equivalent" to RYZUMVI®, implying its formulation will meet the claimed parameters.	¶29; ¶51	col. 43:14-31
provided the aqueous ophthalmic solution does not contain any additional ingredient that is a chelating agent, and wherein the aqueous ophthalmic solution does not contain any additional ingredient that is a stabilizer...	The complaint does not provide sufficient detail for analysis of the specific excipients. The infringement theory presumes Sandoz's formulation will be free of these specific agent types to achieve bioequivalence with RYZUMVI®.	¶29; ¶51	col. 43:21-25

Identified Points of Contention:

Scope Questions: A central dispute for both patents will concern the negative limitations. What is the scope of the terms "chelating agent" and "stabilizer"? A court will have to determine whether an excipient with a primary purpose other than chelating or stabilizing (e.g., an antioxidant or buffer) but with incidental chelating or stabilizing properties would fall within the exclusion, thereby allowing Sandoz to argue non-infringement.

Technical Questions: For the '810 Patent, a key factual question will be what manufacturing process is described in Sandoz's confidential ANDA. Does that process meet the "combining" limitation of claim 1? For the '126 Patent, the analysis will focus on Sandoz's proposed

product label. Does the label instruct storage at "2-8° C." as required by claim 1? Does the formulation described in the ANDA meet the claimed compositional and pH parameters?

V. Key Claim Terms for Construction

The Term: "chelating agent"

Context and Importance: This negative limitation is fundamental to the patents' assertion of novelty over prior art that required chelators for stability. The entire infringement case may depend on whether Sandoz's ANDA product is "free of a chelating agent." Practitioners may focus on this term because Sandoz could argue that an excipient in its formulation has some chelating functionality, thus avoiding infringement.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation (Plaintiff-friendly): The specification explicitly identifies "disodium ethylenediaminetetraacetic acid (EDTA)" as an example of a chelating agent that the invention avoids. '810 Patent, col. 1:57-59 Plaintiffs may argue this contextualizes "chelating agent" as a term of art referring to strong, conventional chelators added for that express purpose, not any compound with incidental chelating properties.

Evidence for a Narrower Interpretation (Defendant-friendly): The patents do not provide an explicit definition of "chelating agent." A defendant may argue for a broad, functional definition encompassing any compound that complexes with metal ions, regardless of its primary purpose or strength. They could then point to an excipient in their formulation and argue it performs this function to some degree.

The Term: "stabilizer"

Context and Importance: The independent claims of both patents require that the solution "does not contain any additional ingredient that is a stabilizer" '810 Patent, col. 42:19-20 '126 Patent, col. 43:24-25 This term's definition is critical, as Sandoz could design its formulation with an excipient it argues is a "stabilizer" to circumvent the claims.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation (Plaintiff-friendly): Plaintiffs may argue that since the claims positively require a polyol and a buffer—which themselves provide stability—the negative limitation must refer to a different, third-party stabilizer not already recited in the claim. The use of "additional ingredient" may support this reading.

Evidence for a Narrower Interpretation (Defendant-friendly): The specification itself describes "polyols, such as mannitol," as "stabilizing agents" '810 Patent, col. 14:52-54 A defendant could argue this creates ambiguity: if a required ingredient (the polyol) is a stabilizer, what does it mean for the solution to not contain a stabilizer? This could be a basis for an indefiniteness argument or a construction that reads on any formulation with an ingredient that has a stabilizing effect.

VI. Other Allegations

Indirect Infringement: The complaint alleges that upon approval of its ANDA, Sandoz will induce infringement of the patents-in-suit Compl. ¶46 Compl. ¶64 The factual basis for this

allegation is that Sandoz's proposed product label will be the same or substantially the same as the RYZUMVI® label, thereby instructing medical professionals and patients to use the generic product in an infringing manner **Compl. ¶29**

Willful Infringement: While the complaint does not use the term "willful," it lays the foundation for such a claim by alleging Sandoz has "actual knowledge" of the patents, at least as of their issuance dates **Compl. ¶34** **Compl. ¶52** Plaintiffs also request a finding that the case is "exceptional" and an award of attorneys' fees under 35 U.S.C. § 285, which is the standard procedural step for preserving a potential willfulness argument **Compl. ¶41** **Compl. ¶59** **Compl., prayer F**

VII. Analyst's Conclusion: Key Questions for the Case

□A core issue will be one of **definitional scope:** how will the court construe the negative limitations "chelating agent" and "stabilizer"? The viability of Sandoz's potential non-infringement defense may turn on whether an excipient with incidental or secondary chelating or stabilizing properties falls within the scope of these excluded categories.

□A second key issue will be one of **label-based infringement:** for the method-of-use claims in the **'126** Patent, does the storage information and other instructions on Sandoz's proposed ANDA label direct users to perform all steps of the asserted claims, including the "storing...at...2-8° C." limitation?

□A third determinative question will be **evidentiary and factual:** for the method-of-making claims in the **'810** Patent, what specific manufacturing process is outlined in Sandoz's confidential ANDA filing? An analysis of that undisclosed process will be required to determine if it meets the "combining" and compositional elements of the asserted claims.

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UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

OPUS GENETICS, INC. and FAMYGEN LIFE

SCIENCES, INC.,

Plaintiffs,

v.

SANDOZ INC.,

Defendant.

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiffs Opus Genetics, Inc. and FamyGen Life Sciences, Inc. (collectively, "Plaintiffs")

by way of Complaint against Defendant Sandoz Inc. ("Sandoz" or "Defendant") allege as follows:

NATURE OF THE ACTION

1.

This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, et seq., including 35 U.S.C. §§ 271 and 281, and for declaratory judgment of infringement under 28 U.S.C. §§ 2201 and 2202, arising from Sandoz's submission of Abbreviated New Drug Application ("ANDA") No. 219888 ("Sandoz's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell generic versions of Plaintiffs' RYZUMVI® (phentolamine ophthalmic solution, Civil Action No. 26-12469

Document Electronically

Filed

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0.75%) drug product prior to the expiration of United States Patent Nos. 12,721,810 ("the '810 patent"), and 12,734,126 ("the '126 patent") (collectively, the "patents-in-suit").

2.

Plaintiffs previously filed two separate actions involving the same ANDA No.

219888 in this Court for patent infringement of U.S. Patent Nos. 9,795,560 ("the '560 patent"), 10,278,918 ("the '918 patent"), 10,772,829 ("the '829 patent"), 11,090,261 ("the '261 patent"), 11,844,858 ("the '858 patent"), 11,400,077 ("the '077 patent"), 12,201,615 ("the '615 patent"), and 12,201,616 ("the '616 patent") (collectively, "the First Suit Patents") in *Opus Genetics, Inc. et al. v. Sandoz Inc.*, No. 3:25-cv-1895 (D.N.J. filed March 14, 2025) ("the First Suit") and U.S. Patent Nos. 12,576,066 ("the '066 patent") and 12,576,067 ("the '067 patent") (collectively, "the Second Suit Patents") in *Opus Genetics, Inc. et al. v. Sandoz Inc.*, No. 3:26-cv-04811 (D.N.J. filed April 29, 2026) ("the Second Suit").

3.

The First Suit was filed in response to letters from Sandoz dated January 31, 2025 ("Sandoz's First Notice Letter") and February 27, 2025 ("Sandoz's Second Notice Letter"), purporting to include a "Notice of Paragraph IV Certification" regarding certain of the First Suit Patents pursuant to Section 505(j)(2)(B) of the Federal Drug, and Cosmetic Act and 21 C.F.R. § 314.95 for ANDA No. 219888. The First Suit included counts of infringement of the First Suit Patents.

4.

5.

The Second Suit included counts of infringement of the Second Suit Patents.

THE PARTIES

Plaintiff FamyGen Life Sciences, Inc. ("FamyGen") is a corporation organized and existing under the laws of Nevada with a registered agent at 732 S 6th Street, Suite R, Las Vegas, Nevada 89101. FamyGen is the registered holder of approved New Drug Application ("NDA") No. 217064 for RYZUMVI® and the exclusive licensee of the patents-in-suit with a right to enforce.

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6.

Plaintiff Opus Genetics, Inc. ("Opus") is a corporation organized and existing under the laws of Delaware with a place of business at 8 Davis Drive, Suite 220, Durham, North Carolina 27709. Opus is the assignee of the patents-in-suit.

7.

Upon information and belief, Defendant Sandoz is a corporation organized and existing under the laws of the State of Delaware having a principal place of business at 100 College Road West, Princeton, New Jersey 08540. Upon information and belief, Sandoz is in the business of, among other things, importing, manufacturing, and selling generic versions of branded pharmaceutical products in and for the U.S. market.

8.

Upon information and belief, Sandoz is a generic pharmaceutical company that by itself and through its subsidiaries, affiliates, and agents, develops, manufactures, markets and distributes generic pharmaceutical products for sale in the State of New Jersey and throughout the United States.

JURISDICTION AND VENUE

9.

This Court has subject matter jurisdiction under 28 U.S.C. §§ 1331, 1338(a), 2201 and 2202.

10. There is an actual, substantial, justiciable, and continuing controversy between Plaintiffs and Defendant having adverse legal interests of sufficient immediacy and reality to warrant the issuance of a declaratory judgment regarding infringement of the patents-in-suit.

11.

This Court has personal jurisdiction over Sandoz. Upon information and belief, Sandoz is in the business of, inter alia, developing, manufacturing, marketing, importing, and selling pharmaceutical products, including generic drug products. Upon information and belief, Sandoz directly or indirectly manufactures, markets, and sells generic drug products throughout the United States and in this judicial district, and this judicial district is a likely destination for its proposed generic RYZUMVI® drug product ("Sandoz's ANDA Product"). Upon information and

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belief, Sandoz is a corporation with a principal place of business in New Jersey. Upon information and belief, Sandoz purposefully has conducted and continues to conduct business in this judicial district and has continuous and systematic contacts with the State of New Jersey.

12. Upon information and belief, Sandoz knows and intends that upon approval of Sandoz's ANDA, Sandoz will manufacture Sandoz's ANDA Product and Sandoz will directly or indirectly market, sell, and distribute Sandoz's ANDA Product throughout the United States, including in this judicial district.

13. Upon information and belief, Sandoz is registered to do business in the State of New Jersey under Entity Identification Number 0100097265 and is registered with the New Jersey Department of Health as a drug manufacturer and wholesaler under Registration Number 5003732.

14.

Sandoz has consented to personal jurisdiction in this Court in numerous recent actions arising out of its ANDA filings and has filed counterclaims in such cases. See, e.g., *Opus Genetics, Inc. et al. v. Sandoz Inc.*, Civil Action No. 25-cv-01895, ECF No. 43 (D.N.J. June 2, 2025); *Opus Genetics, Inc. et al. v. Sandoz Inc.*, Civil Action No. 26-cv-04811, ECF No. 11 (D.N.J. June 3, 2026); *AstraZeneca Pharms. LP et al. v. Sandoz Inc.*, Civil Action No. 24-00641, ECF No. 14 (D.N.J. Apr. 5, 2024); *Amgen Inc. v. Sandoz Inc.*, Civil Action No. 18-11026, ECF No. 18 (D.N.J. Sept. 25, 2018); *Allergan Sales, LLC v. Sandoz, Inc.*, Civil Action No. 17-10129, ECF No. 18 (D.N.J. Dec. 19, 2017); *Boehringer Ingelheim Pharms., Inc. v. Sandoz, Inc.*, Civil Action No. 17-08825, ECF No. 14 (D.N.J. Jan. 23, 2018); *Mitsubishi Tanabe Pharma Corp. v. MSN Lab's Priv. Ltd.*, Civil Action No. 17-05302, ECF No. 28 (D.N.J. Nov. 17, 2017). Sandoz has purposefully availed itself of the rights and benefits of this Court by asserting such counterclaims in this Court.

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15. Upon information and belief, Sandoz has a regular and established place of business at 100 College Road West, Princeton, New Jersey 08540 and has committed an act of infringement in this judicial district, where a substantial part of the events and injury giving rise to Plaintiffs' claims has and continues to occur, including the filing and submission of Sandoz's ANDA with the FDA for the purpose of seeking approval to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Sandoz's ANDA Product in the United States, including New

Jersey.

16.

Sandoz did not contest personal jurisdiction or venue in the First Suit or Second Suit. See *Opus Genetics, Inc. et al. v. Sandoz Inc.*, Civil Action No. 25-cv-01895, ECF No. 43 at ¶¶ 11, 13 (D.N.J. June 2, 2025); *Opus Genetics, Inc. et al. v. Sandoz Inc.*, Civil Action No. 26-cv-04811, ECF No. 11 at ¶¶ 13, 16 (D.N.J. June 3, 2026);

17.

For at least the foregoing reasons, venue is proper in this judicial district under 28 U.S.C. §§ 1391 and/or 1400(b).

THE NDA

18.

Plaintiff FamyGen is the holder of NDA No. 217064 for RYZUMVI® (phentolamine ophthalmic solution, 0.75%). RYZUMVI® (phentolamine ophthalmic solution) 0.75% is a sterile solution for topical ophthalmic use containing 1% phentolamine mesylate (equivalent to 0.75% phentolamine).

19. The FDA approved NDA No. 217064 on September 25, 2023. RYZUMVI® is indicated for the treatment of pharmacologically-induced mydriasis produced by adrenergic agonists (e.g., phenylephrine) or parasympatholytic (e.g. tropicamide) agents.

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THE PATENTS-IN-SUIT

20.

Plaintiffs intend to list the patents-in-suit in the FDA publication, “Approved Drug Products with Therapeutic Equivalence Evaluations” (the “Orange Book”), with respect to NDA No. 217064 for RYZUMVI®.

21. On September 1, 2026, the United States Patent and Trademark Office (“USPTO”) duly and lawfully issued the ’810 patent, titled “Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof”. A true and correct copy of the ’810 patent is attached as Exhibit A. The claims of the ’810 patent are valid and enforceable.

22.

Plaintiff Opus is the assignee of the ’810 patent through assignment as recorded by the USPTO at Reel 73069, Frame 0550.

23.

Plaintiff FamyGen is the exclusive licensee of the ’810 patent.

24. On September 15, 2026, the USPTO duly and lawfully issued the ’126 patent, titled “Aqueous Ophthalmic Solutions of Phentolamine and Medical Uses Thereof”. A true and correct copy of the ’126 patent is attached as Exhibit B. The claims of the ’126 patent are valid and enforceable.

25.

Plaintiff Opus is the assignee of the ’126 patent through assignment as recorded by the USPTO at Reel 73069, Frame 0550.

26.

Plaintiff FamyGen is the exclusive licensee of the ’126 patent.

SANDOZ’S INFRINGING ANDA SUBMISSION

27. Upon information and belief, Sandoz filed or caused to be filed with the FDA ANDA No. 219888, under Section 505(j) of the Act and 21 U.S.C. § 355(j).

28. Upon information and belief, Sandoz seeks FDA approval to engage in commercial manufacture, use, and sale in the United States of Sandoz’s ANDA Product, intended to be a generic version of RYZUMVI®.

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29. Upon information and belief, including based on requirements of the FDA, ANDA

No. 219888 seeks approval of Sandoz's ANDA Product that is the same, or substantially the same, as RYZUMVI®. Upon information and belief, including based on requirements of the FDA, ANDA No. 219888 seeks approval of Sandoz's ANDA Product that has a label and indications that are the same, or substantially the same, as RYZUMVI®.

COUNT I FOR PATENT INFRINGEMENT

30.

Infringement of the '810 Patent Under 35 U.S.C. § 271(e)(2)

Paragraphs 1-29 are incorporated herein as set forth above.

31. Upon information and belief, Sandoz filed ANDA No. 219888, seeking approval to manufacture, use, import, offer to sell and/or sell Sandoz's ANDA Product in the United States before the expiration of the '810 patent.

32. Upon information and belief, in its ANDA No. 219888, Sandoz has or will file with the FDA, pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) and 21 C.F.R. § 314.94(a)(12)(i)(A)(4), a certification alleging that the claims of the '810 patent are invalid, unenforceable and/or will not be infringed.

33. Upon information and belief, in its ANDA No. 219888, Sandoz has represented to the FDA that Sandoz's ANDA Product is pharmaceutically and therapeutically equivalent to RYZUMVI®.

34. Upon information and belief, Sandoz has actual knowledge of the '810 patent.

Upon information and belief, Sandoz became aware of the '810 patent no later than the date on which the patent was issued by the Patent Office.

35. Upon information and belief, under 35 U.S.C. § 271(e)(2)(A), Sandoz has infringed at least one claim of the '810 patent by submitting, or causing to be submitted, to the FDA ANDA - 7 -

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No. 219888, seeking approval to manufacture, use, import, offer to sell or sell Sandoz's ANDA Product before the expiration date of the '810 patent.

36. Upon information and belief, if ANDA No. 219888 is approved, Sandoz intends to and will manufacture, use, import, offer to sell and/or sell Sandoz's ANDA Product in the United States.

37. Upon information and belief, if ANDA No. 219888 is approved, Sandoz will directly or indirectly infringe one or more claims of the '810 patent under 35 U.S.C. § 271(a), (b), (c), and/or (g) by making, using, offering to sell, selling and/or importing Sandoz's ANDA Product, unless this Court orders that the effective date of any FDA approval of ANDA No. 219888 shall be no earlier than the expiration of the '810 patent and any additional periods of exclusivity.

38. Upon information and belief, Sandoz's actions relating to Sandoz's ANDA No. 219888 complained of herein were done by and for the benefit of Sandoz.

39.

Plaintiffs will be irreparably harmed by Sandoz's infringing activities unless this Court enjoins those activities.

40.

Plaintiffs do not have an adequate remedy at law.

41. This case is an exceptional one, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

COUNT II FOR PATENT INFRINGEMENT

42.

Declaratory Judgment of Infringement of the '810 Patent

Paragraphs 1-41 are incorporated herein as set forth above.

43. These claims arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

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44. There is an actual case or controversy such that the Court may entertain Plaintiffs' request for declaratory relief consistent with Article III of the United States Constitution, and this actual case or controversy requires a declaration of rights by this Court.

45. Defendant has made, and will continue to make, substantial preparation in the United States to manufacture, use, offer to sell, sell, and/or import Sandoz's ANDA Product before the expiration date of the '810 patent, including Sandoz's submission of ANDA No. 219888.

46. Upon information and belief, any commercial manufacture, use, offer for sale, sale, and/or importation of Sandoz's ANDA Product will directly infringe, contributorily infringe, and/or induce infringement of at least one claim of the '810 patent under 35 U.S.C. § 271(a), (b), (c) and/or (g).

47.

Plaintiffs

are

entitled

to

a

declaratory

judgment that future

commercial

manufacture, use, offer of sale, sale, and/or importation of Sandoz's ANDA Product will constitute infringement of at least one claim of the '810 patent under 35 U.S.C. § 271(a), (b), (c) and/or (g).

COUNT III FOR PATENT INFRINGEMENT

48.

Infringement of the '126 Patent Under 35 U.S.C. § 271(e)(2)

Paragraphs 1-47 are incorporated herein as set forth above.

49. Upon information and belief, Sandoz filed ANDA No. 219888, seeking approval to manufacture, use, import, offer to sell and/or sell Sandoz's ANDA Product in the United States before the expiration of the '126 patent.

50. Upon information and belief, in its ANDA No. 219888, Sandoz has or will file with the FDA, pursuant to 21 U.S.C. § 355(j)(2)(A)(vii)(IV) and 21 C.F.R. § 314.94(a)(12)(i)(A)(4), a certification alleging that the claims of the '126 patent are invalid, unenforceable and/or will not be infringed.

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51. Upon information and belief, in its ANDA No. 219888, Sandoz has represented to the FDA that Sandoz's ANDA Product is pharmaceutically and therapeutically equivalent to RYZUMVI®.

52. Upon information and belief, Sandoz has actual knowledge of the '126 patent.

Upon information and belief, Sandoz became aware of the '126 patent no later than the date on which the patent was issued by the Patent Office.

53. Upon information and belief, under 35 U.S.C. § 271(e)(2)(A), Sandoz has infringed at least one claim of the '126 patent by submitting, or causing to be submitted, to the FDA ANDA No. 219888, seeking approval to manufacture, use, import, offer to sell or sell Sandoz's ANDA Product before the expiration date of the '126 patent.

54. Upon information and belief, if ANDA No. 219888 is approved, Sandoz intends to and will manufacture, use, import, offer to sell and/or sell Sandoz's ANDA Product in the United States.

55. Upon information and belief, if ANDA No. 219888 is approved, Sandoz will directly or indirectly infringe one or more claims of the '126 patent under 35 U.S.C. § 271(a), (b), and/or (c) by making, using, offering to sell, selling and/or importing Sandoz's ANDA Product, unless this Court orders that the effective date of any FDA approval of ANDA No. 219888 shall be no earlier than the expiration of the '126 patent and any additional periods of exclusivity.

56. Upon information and belief, Sandoz's actions relating to Sandoz's ANDA No. 219888 complained of herein were done by and for the benefit of Sandoz.

57.

Plaintiffs will be irreparably harmed by Sandoz's infringing activities unless this Court enjoins those activities.

58.

Plaintiffs do not have an adequate remedy at law.

59. This case is an exceptional one, and Plaintiffs are entitled to an award of their reasonable attorneys' fees under 35 U.S.C. § 285.

COUNT IV FOR PATENT INFRINGEMENT

60.

Declaratory Judgment of Infringement of the '126 Patent
Paragraphs 1-59 are incorporated herein as set forth above.

61. These claims arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

62. There is an actual case or controversy such that the Court may entertain Plaintiffs' request for declaratory relief consistent with Article III of the United States Constitution, and this actual case or controversy requires a declaration of rights by this Court.

63. Defendant has made, and will continue to make, substantial preparation in the United States to manufacture, use, offer to sell, sell, and/or import Sandoz's ANDA Product before the expiration date of the '126 patent, including Sandoz's submission of ANDA No. 219888.

64. Upon information and belief, any commercial manufacture, use, offer for sale, sale, and/or importation of Sandoz's ANDA Product will directly infringe, contributorily infringe, and/or induce infringement of at least one claim of the '126 patent under 35 U.S.C. § 271(a), (b), and/or (c).

65.

Plaintiffs

are

entitled

to

a

declaratory

judgment that future

commercial

manufacture, use, offer of sale, sale, and/or importation of Sandoz's ANDA Product will constitute infringement of at least one claim of the '126 patent under 35 U.S.C. § 271(a), (b), and/or (c).

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that this Court enter judgment in their favor and against Defendant on the claims set forth above and respectfully request that this Court:

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A.

Enter judgment that, under 35 U.S.C. § 271(e)(2), Sandoz has infringed at least one claim of each of the patents-in-suit through Sandoz's submission of ANDA No. 219888 to the FDA seeking approval to manufacture, use, import, offer to sell and/or sell Sandoz's ANDA Product in the United States before the expiration of the patents-in-suit;

B. Order that the effective date of any approval by the FDA of Sandoz's ANDA

Product shall be no earlier than the expiration date of the patents-in-suit and any additional periods of exclusivity, or any such later date as the Court may determine, in accordance with 35 U.S.C. § 271(e)(4)(A);

C.

Enjoin Sandoz and all persons acting in concert with Sandoz from manufacturing,

using, offering for sale, or selling Sandoz's ANDA Product within the United States, or importing Sandoz's ANDA Product into the United States, until the expiration of the patents-in-suit, including any additional periods of exclusivity, or any such later date as the Court may determine, in accordance with 35 U.S.C. § 271(e)(4)(B);

D.

Enter judgment declaring that Sandoz's commercial manufacture, use, offer for sale, or sale in the United States or importation into the United States, of Sandoz's ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the patents-in-suit by Sandoz under one or more of 35 U.S.C. § 271(a), (b), (c), and (g);

E.

Enter judgment declaring that the patents-in-suit remain valid and enforceable;

F.

Enter judgment declaring that Sandoz's acts render this case an exceptional case and award Plaintiffs their attorneys' fees pursuant to 35 U.S.C. §§ 271(e)(4) and 285;

G. Award Plaintiffs their costs, expenses and disbursements in this action;

H.

Award Plaintiffs any further appropriate relief under 35 U.S.C. § 271(e)(4); and

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I.

proper.

Dated: September 21, 2026

By:

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Award Plaintiffs any further and additional relief that this Court deems just and

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CERTIFICATION PURSUANT TO LOCAL CIVIL RULE 11.2

The undersigned hereby certifies, pursuant to Local Civil Rule 11.2 and in compliance with 28 U.S.C. § 1746, that with respect to the matter in controversy, there are two other actions pending in this Court concerning the same ANDA No. 219888 and alleging patent infringement against the same Defendant. Those actions are captioned Opus Genetics, Inc. et al v. Sandoz Inc., No. 3:25-cv-1895 (D.N.J. filed March 14, 2025) and Opus Genetics, Inc. et al v. Sandoz Inc., No. 3-26-cv-04811 (D.N.J. filed April 29, 2026).

Dated: September 21, 2026

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